

Form 9C – Respondent’s statement of facts and contentions

Industrial Relations Act 2016, section 989

seal

Information

- Use this form to state your facts and contentions. Clearly and concisely specify the contentions in this matter.
- Please read this form carefully. Please complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the rejection of your form.

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Appellant:

CORY LEA SHEPHERD

V

Respondent:

WORKERS’ COMPENSATION REGULATOR

Facts

1. This is a new and fresh statement of facts and contentions in response to the applicant’s fresh statement of facts filed on 7 April 2026.
2. At the time of lodging the application for workers’ compensation (‘application’) with WorkCover Queensland (‘WorkCover’) on 1 July 2024 for a psychological injury, the appellant was employed by the Metro South Hospital and Health Service as an Administration Officer, based at Logan Hospital.
3. By decision dated 13 September 2024, WorkCover advised the appellant of the decision to not accept the application. The decision of WorkCover was confirmed by the respondent’s review unit by way of reasons for decision dated 24 October 2024.
4. The appellant’s Notice of Appeal was filed on 26 November 2024.
5. As this appeal is to be determined as a hearing de novo, the appellant bears the onus to prove that there was sustained an injury in accordance with the provisions of the *Workers’ Compensation and Rehabilitation Act 2003* (‘WCRA’).

6. To do so, the appellant must prove, on the balance of probabilities, that:
- (a) the appellant suffered a personal injury that is a psychiatric or psychological disorder;
 - (b) the injury has arisen out of, or in the course of employment with the employer;
 - (c) employment was a significant contributing factor to the injury; and
 - (d) the injury did not arise out of, or in the course of:
 - (i) reasonable management action taken in a reasonable way by the employer in connection with the appellant's employment;
 - (ii) the appellant's expectations or perception of reasonable management action being taken against the appellant; and
 - (iii) action taken by WorkCover in connection with the appellant's application for compensation.
7. The respondent does not admit the allegations contained in paragraph **1.1** of the appellant's statement of facts and contentions ('statement') because the appellant was employed by the Metro South Hospital and Health Service as an Administration Officer, based at Logan Hospital.
8. The respondent does not admit the allegations contained in paragraphs **1.2** appellant's statement because medical records identify a past medical history of anxiety.
9. The respondent does not admit paragraph **1.3** of the appellant's statement and says that these are matters for determination by the Commission at a hearing.
10. The respondent does admit paragraph **1.4** of the appellant's statement and says that Dr Peter Hawes provided a medical certificate stating that the mechanism was "*ongoing breaking of workplace rules by bosses, victimizing him*" but denies that as a fact because this is not supported by the evidence on which the respondent relies.

The alleged causative stressors

Stressor 1

11. The respondent does not admit the allegations in **stressor 1(a)** of the appellants statement, because there are no particulars or details to respond to. The respondent does not admit that Ms Taylor maintained an erratic physical presence or imposed unassessed unilateral directives without consultation. Further, the respondent denies there was any managerial hostility or unreasonable management action.
12. With respect to **stressor 1(b)** of the appellant's statement, the respondent:
- (a) admits that the Ms Taylor did remove pages from the Communication Book on or around 6 June 2023;
 - (b) says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email;
 - (c) says this event occurred after Ms Taylor sent an email to the Logan Switch team at 9.57 am with a reminder about the correct use of the Communications Book;
 - (d) says the actions of Ms Taylor were reasonable in all respects.

13. With respect to **stressor 1(c)** of the appellant's statement, the respondent does not admit the allegations and:
- (a) says that the appellant sent an email on 7 August 2023, but denies it was a formal grievance;
 - (b) says the issues raised in the emails speak for themselves;
 - (c) denies that Ms Tammy Reese dismissed the issues raised by the appellant because the email prompted a meeting with the appellant and Ms Reese on 10 August to discuss the issues;
 - (d) says Ms Reese emailed the appellant on 29 August 2023 advising him that he had an option to make a formal grievance;
 - (e) Ms Reese sent the appellant another email on 8 September 2023 to further address the appellant's issues;
 - (f) says that Ms Taylor emailed the appellant on 14 November 2023 to discuss compliance with shift and break time procedures and to arrange a meeting for 15 November 2023;
 - (g) says the actions of Ms Reese and Ms Taylor were reasonable in all respects.
14. With respect to **stressor 1(d)** of the appellant's statement, the respondent does not admit the allegations and:
- (a) says that during the March 2024 there was a process to follow if a worker tested positive for COVID-19;
 - (b) says the appellant had advised Ms Taylor that he was COVID-19 positive;
 - (c) Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test;
 - (d) Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit;
 - (e) says that a review indicates that in fact, the attachments were present on the appellant's submission;
 - (f) says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19;
 - (g) says the actions of Ms Taylor were not unreasonable management actions in the circumstances.
15. With respect to **stressor 1(e)** of the appellant's statement, the respondent admits the allegation.
16. With respect to **stressor 1(f)** of the appellant's statement, the respondent does not admit the allegations and:
- (a) says that Ms Reese was unaware that the appellant had lodged a PID;
 - (b) says that the following events occurred over 13 May 2024 to 15 May 2024:
 - (i) the appellant had difficulty in attending work on his rostered shifts (on 13 May 2024 to 15 May 2024) and did not comply with the processes of properly notifying Ms Taylor or manager of his absences, the 'on-call process';
 - (ii) Ms Taylor raised these issues with the appellant via email on the 14 May 12.08pm;
 - (iii) the appellant then sent an email to many people at the workplace on 15 May 1.15pm;
 - (iv) Ms Taylor then raised this as an issue with Ms Reese at 1.20pm;

- (v) Ms Reese having sought advice from Human Resources, emailed the Appellant at 6.23pm;
- (vi) the appellant did not want to retract his email;
- (vii) the email was ultimately removed from the server;
- (viii) says that the actions of Ms Taylor and Ms Reese were reasonable in all respects.

17. With respect to **stressor 1(g)** of the appellant's statement, the respondent does not admit the allegations and:

- (a) says that the appellant sent a text to Ms Taylor at 5.03pm that he was "*just putting his hand up*" but says that this was not a formal notification about the appellant's interest in assuming the role of union delegate;
- (b) denies that there was a breach of policy or that the employer actively suppressed this appointment;
- (c) says that the appellant did not request assistance;
- (d) Ms Taylor did provide advice and support to the appellant and the appellant was provided with delegate information;
- (e) there was no "*deliberate inaction*" as alleged;
- (f) says that the actions of Ms Taylor were reasonable in all respects.

Stressor 2

18. The respondent does not admit the allegations in **stressor 2(a)** of the appellants statement because there are no particulars or details to respond to.

19. With respect to allegations of payroll failures (and **stressor 2(a)**) the respondent does not admit the allegations and:

- (a) says that the appellant did text Ms Taylor on or about 4 April 2023;
- (b) says this pay period involved the Easter weekend of 8 and 9 April 2023;
- (c) says that the appellant was rostered in an equitable way over the Easter period and that the appellant would not have earned 42% less than his colleagues;
- (d) says the actions of Ms Taylor were reasonable in all respects.

20. The respondent says further:

- (a) the appellant raised various issues about his pay over the period of 2023 and 2024;
- (b) all raised issues were investigated in a timely manner;
- (c) any discrepancies or errors were remedied in a timely manner;
- (d) the appellant was not entitled to 'Public Holiday not Worked' amounts and was paid a public holiday allowance instead, where appropriate;
- (e) the process was reasonable in all the circumstances;
- (f) there are no outstanding underpayments for the appellant;
- (g) the actions of management were reasonable and taken in a reasonable way.

21. With respect to **stressor 2(b)** of the appellant's statement, the respondent does not admit the allegations and:

- (a) says that Ms Taylor received an email on 3 May 2024 from the payroll officer asking her to "submit an AVAC" to correct shift payments for the appellant;
- (b) says that on 21 May 2024 Ms Taylor emailed the appellant stating she was waiting for payroll confirmation on a few issues and would submit an AVAC for the next pay run as soon as she received it;
- (c) says Ms Taylor submitted the AVAC on 28 May 2024;
- (d) says the actions of Ms Taylor were reasonable in all respects.

Stressor 3

22. With respect to **stressor 3(a)** of the appellant's statement, the respondent does not admit the allegations and:

- (a) says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated;
- (b) says that the appellant could refuse shifts at anytime;
- (c) says the appellant took leave on 19 March 2024 but says this was paid leave;
- (d) says there is a leave fatigue policy but says the contents of this document and the *Hospital and Health Services General Employee Award State 2015* ('the Award'), define the operative circumstances of the leave and payments;
- (e) says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts;
- (f) says that this issue was not causative of the appellant's injury.

23. With respect to **stressor 3(b)** of the appellant's statement, the respondent does not admit the allegations and says there was no breach of any mandate and repeats the response to stressor 3(a).

24. With respect to **stressor 3(c)** of the appellant's statement, the respondent does not admit the allegations, repeats the response to stressor 3(a) and:

- (a) says that the appellant took leave on 19 March 2024 but says this was paid leave;
- (b) says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime;

Alleged subsequent aggravating Conduct

25. With respect to paragraph **3(a) to 3(c)**, these alleged events occurred after the appellant made his workers' compensation application (1 July 2024) and post-date any injury. Therefore, these matters are not relevant to the issues that need to be determined by the Commission.

Contentions

26. The respondent admits that the appellant is a worker in accordance with s11 of the WCRA.
27. The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA.

Decision sought

1. The appeal is dismissed.
2. The respondent's decision dated 24 October 2024 is confirmed.
3. The appellant pay the respondent's costs of the hearing.

Filed by			
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